Selected RA 7160 Provisions for Katarungang Pambarangay Decision Logic

Official Gazette Extract | Republic Act No. 7160 | Local Government Code of 1991

Scope. This document includes only the RA 7160 provisions that directly affect Katarungang Pambarangay case decision logic: jurisdiction, venue, procedure, settlement, direct-court exceptions, arbitration, certification/referral points, execution, repudiation, court transmittal, oath authority, and failure-to-appear sanctions. It intentionally excludes Lupon formation, Lupon/Pangkat membership, incentives, awards, and unrelated Local Government Code provisions.

Source. Official Gazette of the Republic of the Philippines, Republic Act No. 7160, approved October 10, 1991. URL: https://www.officialgazette.gov.ph/1991/10/10/republic-act-no-7160/

Article reference. The Katarungang Pambarangay provisions used here appear under Book III, Title One, Chapter VII. The Official Gazette text does not divide Chapter VII into articles; therefore, the Article field is marked N/A.

Included Official Sections

System Category	Book / Title / Chapter	Article	Section
Jurisdiction / subject-matter coverage / exclusions	Book III, Title One, Chapter VII - Katarungang Pambarangay	N/A	Section 408
Venue / proper barangay for settlement	Book III, Title One, Chapter VII - Katarungang Pambarangay	N/A	Section 409
Procedure / filing / mediation / summons / pangkat / prescription	Book III, Title One, Chapter VII - Katarungang Pambarangay	N/A	Section 410
Settlement form requirements	Book III, Title One, Chapter VII - Katarungang Pambarangay	N/A	Section 411
Pre-condition before court / direct-to-court exceptions / indigenous conciliation	Book III, Title One, Chapter VII - Katarungang Pambarangay	N/A	Section 412
Arbitration	Book III, Title One, Chapter VII - Katarungang Pambarangay	N/A	Section 413
Proceedings format / public or private hearing rule	Book III, Title One, Chapter VII - Katarungang Pambarangay	N/A	Section 414
Personal appearance / counsel-representative restriction	Book III, Title One, Chapter VII - Katarungang Pambarangay	N/A	Section 415
Effect and finality of amicable settlement and arbitration award	Book III, Title One, Chapter VII - Katarungang Pambarangay	N/A	Section 416
Execution / enforcement period	Book III, Title One, Chapter VII - Katarungang Pambarangay	N/A	Section 417
Repudiation / basis for certification to file action	Book III, Title One, Chapter VII - Katarungang Pambarangay	N/A	Section 418
Transmittal to court / court filing record	Book III, Title One, Chapter VII - Katarungang Pambarangay	N/A	Section 419
Oath authority for KP proceedings	Book III, Title One, Chapter VII - Katarungang Pambarangay	N/A	Section 420
Failure-to-appear sanctions / indirect contempt / bar to action or counterclaim	Book IV, Title I	N/A	Section 515

Section 408

System category	Jurisdiction / subject-matter coverage / exclusions
Official location	Book III, Title One, Chapter VII - Katarungang Pambarangay
Article	N/A

SECTION 408. Subject Matter for Amicable Settlement; Exception Thereto. – The lupon of each barangay shall have authority to bring together the parties actually residing in the same city or municipality for amicable settlement of all disputes except:

(a) Where one party is the government, or any subdivision or instrumentality thereof;

(b) Where one party is a public officer or employee, and the dispute relates to the performance of his official functions;

(c) Offenses punishable by imprisonment exceeding one (1) year or a fine exceeding Five thousand pesos (P5,000.00);

(d) Offenses where there is no private offended party;

(e) Where the dispute involves real properties located in different cities or municipalities unless the parties thereto agree to submit their differences to amicable settlement by an appropriate lupon;

(f) Disputes involving parties who actually reside in barangays of different cities or municipalities, except where such barangay units adjoin each other and the parties thereto agree to submit their differences to amicable settlement by an appropriate lupon;

(g) Such other classes of disputes which the President may determine in the interest of justice or upon the recommendation of the Secretary of Justice.

The court in which non-criminal cases not falling within the authority of the lupon under this Code are filed may, at any time before trial, motu proprio refer the case to the lupon concerned for amicable settlement.

Section 409

System category	Venue / proper barangay for settlement
Official location	Book III, Title One, Chapter VII - Katarungang Pambarangay
Article	N/A

SECTION 409. Venue. – (a) Disputes between persons actually residing in the same barangay shall be brought for amicable settlement before the lupon of said barangay.

(b) Those involving actual residents of different barangays within the same city or municipality shall be brought in the barangay where the respondent or any of the respondents actually resides, at the election of the complainant.

(c) All disputes involving real property or any interest therein shall be brought in the barangay where the real property or the larger portion thereof is situated.

(d) Those arising at the workplace where the contending parties are employed or at the institution where such parties are enrolled for study, shall be brought in the barangay where such workplace or institution is located.

Objections to venue shall be raised in the mediation proceedings before the punong barangay; otherwise, the same shall be deemed waived. Any legal question which may confront the punong barangay in resolving objections to venue herein referred to may be submitted to the Secretary of Justice or his duly designated representative, whose ruling thereon shall be binding.

Section 410

System category	Procedure / filing / mediation / summons / pangkat / prescription
Official location	Book III, Title One, Chapter VII - Katarungang Pambarangay
Article	N/A

SECTION 410. Procedure for Amicable Settlement. – (a) Who may initiate proceeding – Upon payment of the appropriate filing fee, any individual who has a cause of action against another individual involving any matter within the authority of the lupon may complain, orally or in writing, to the lupon chairman of the barangay.

(b) Mediation by lupon chairman – Upon receipt of the complaint, the lupon chairman shall, within the next working day, summon the respondent(s), with notice to the complainant(s) for them and their witnesses to appear before him for a mediation of their conflicting interests. If he fails in his mediation effort within fifteen (15) days from the first meeting of the parties before him, he shall forthwith set a date for the constitution of the pangkat in accordance with the provisions of this Chapter.

(c) Suspension of prescriptive period of offenses – While the dispute is under mediation, conciliation, or arbitration, the prescriptive periods for offenses and cause of action under existing laws shall be interrupted upon filing of the complaint with the punong barangay. The prescriptive periods shall resume upon receipt by the complainant of the complaint or the certificate of repudiation or of the certification to file action issued by the lupon or pangkat secretary: Provided, however, That such interruption shall not exceed sixty (60) days from the filing of the complaint with the punong barangay.

(d) Issuance of summons; hearing; grounds for disqualification – The pangkat shall convene not later than three (3) days from its constitution, on the day and hour set by the lupon chairman, to hear both parties and their witnesses, simplify issues, and explore all possibilities for amicable settlement. For this purpose, the pangkat may issue summons for the personal appearance of parties and witnesses before it. In the event that a party moves to disqualify any member of the pangkat by reason of relationship, bias, interest, or any other similar grounds discovered after the constitution of the pangkat, the matter shall be resolved by the affirmative vote of the majority of the pangkat whose decision shall be final. Should disqualification be decided upon, the resulting vacancy shall be filled as herein provided for.

e) Period to arrive at a settlement – The pangkat shall arrive at a settlement or resolution of the dispute within fifteen (15) days from the day it convenes in accordance with this section. This period shall, at the discretion of the pangkat, be extendible for another period which shall not exceed fifteen (15) days, except in clearly meritorious cases.

Section 411

System category	Settlement form requirements
Official location	Book III, Title One, Chapter VII - Katarungang Pambarangay
Article	N/A

SECTION 411. Form of Settlement. – All amicable settlements shall be in writing, in a language or dialect known to the parties, signed by them, and attested to by the lupon chairman or the pangkat chairman, as the case may be. When the parties to the dispute do not use the same language or dialect, the settlement shall be written in the language known to them.

Section 412

System category	Pre-condition before court / direct-to-court exceptions / indigenous conciliation
Official location	Book III, Title One, Chapter VII - Katarungang Pambarangay
Article	N/A

SECTION 412. Conciliation. – (a) Pre-condition to Filing of Complaint in Court. – No complaint, petition, action, or proceeding involving any matter within the authority of the lupon shall be filed or instituted directly in court or any other government office for adjudication, unless there has been a confrontation between the parties before the lupon chairman or the pangkat, and that no conciliation or settlement has been reached as certified by the lupon secretary or pangkat secretary as attested to by the lupon or pangkat chairman or unless the settlement has been repudiated by the parties thereto.

(b) Where Parties May Go Directly to Court. – The parties may go directly to court in the following instances:

(1) Where the accused is under detention;

(2) Where a person has otherwise been deprived of personal liberty calling for habeas corpus proceedings;

(3) Where actions are coupled with provisional remedies such as preliminary injunction, attachment, delivery of personal property and support pendente lite; and

(4) Where the action may otherwise be barred by the statute of limitations.

(c) Conciliation Among Members of Indigenous Cultural Communities. – The customs and traditions of indigenous cultural communities shall be applied in settling disputes between members of the cultural communities.

Section 413

System category	Arbitration
Official location	Book III, Title One, Chapter VII - Katarungang Pambarangay
Article	N/A

SECTION 413. Arbitration. – (a) The parties may, at any stage of the proceedings, agree in writing that they shall abide by the arbitration award of the lupon chairman or the pangkat. Such agreement to arbitrate may be repudiated within five (5) days from the date thereof for the same grounds and in accordance with the procedure hereinafter prescribed. The arbitration award shall be made after the lapse of the period for repudiation and within ten (10) days thereafter.

(b) The arbitration award shall be in writing in a language or dialect known to the parties. When the parties to the dispute do not use the same language or dialect, the award shall be written in the language or dialect known to them.

Section 414

System category	Proceedings format / public or private hearing rule
Official location	Book III, Title One, Chapter VII - Katarungang Pambarangay
Article	N/A

SECTION 414. Proceedings Open to the Public; Exception. – All proceedings for settlement shall be public and informal: Provided, however, That the lupon chairman or the pangkat chairman, as the case may be, may motu proprio or upon request of a party, exclude the public from the proceedings in the interest of privacy, decency, or public morals.

Section 415

System category	Personal appearance / counsel-representative restriction
Official location	Book III, Title One, Chapter VII - Katarungang Pambarangay
Article	N/A

SECTION 415. Appearance of Parties in Person. – In all katarungang pambarangay proceedings, the parties must appear in person without the assistance of counsel or representative, except for minors and incompetents who may be assisted by their next-of-kin who are not lawyers.

Section 416

System category	Effect and finality of amicable settlement and arbitration award
Official location	Book III, Title One, Chapter VII - Katarungang Pambarangay
Article	N/A

SECTION 416. Effect of Amicable Settlement and Arbitration Award. – The amicable settlement and arbitration award shall have the force and effect of a final judgment of a court upon the expiration of ten (10) days from the date thereof, unless repudiation of the settlement has been made or a petition to nullify the award has been filed before the proper city or municipal court.

However, this provision shall not apply to court cases settled by the lupon under the last paragraph of Section 408 of this Code, in which case the compromise settlement agreed upon by the parties before the lupon chairman or the pangkat chairman shall be submitted to the court and upon approval thereof, have the force and effect of a judgment of said court.

Section 417

System category	Execution / enforcement period
Official location	Book III, Title One, Chapter VII - Katarungang Pambarangay
Article	N/A

SECTION 417. Execution. – The amicable settlement or arbitration award may be enforced by execution by the lupon within six (6) months from the date of the settlement. After the lapse of such time, the settlement may be enforced by action in the appropriate city or municipal court.

Section 418

System category	Repudiation / basis for certification to file action
Official location	Book III, Title One, Chapter VII - Katarungang Pambarangay
Article	N/A

SECTION 418. Repudiation. – Any party to the dispute may, within ten (10) days from the date of the settlement, repudiate the same by filing with the lupon chairman a statement to that effect sworn to before him, where the consent is vitiated by fraud, violence, or intimidation. Such repudiation shall be sufficient basis for the issuance of the certification for filing a complaint as hereinabove provided.

Section 419

System category	Transmittal to court / court filing record
Official location	Book III, Title One, Chapter VII - Katarungang Pambarangay
Article	N/A

SECTION 419. Transmittal of Settlement and Arbitration Award to the Court. – The secretary of the lupon shall transmit the settlement or the arbitration award to the appropriate city or municipal court within five (5) days from the date of the award or from the lapse of the ten-day period repudiating the settlement and shall furnish copies thereof to each of the parties to the settlement and the lupon chairman.

Section 420

System category	Oath authority for KP proceedings
Official location	Book III, Title One, Chapter VII - Katarungang Pambarangay
Article	N/A

SECTION 420. Power to Administer Oaths. – The punong barangay, as chairman of the lupong tagapamayapa, and the members of the pangkat are hereby authorized to administer oaths in connection with any matter relating to all proceedings in the implementation of the katarungang pambarangay.

Section 515

System category	Failure-to-appear sanctions / indirect contempt / bar to action or counterclaim
Official location	Book IV, Title I
Article	N/A

SECTION 515. Refusal or Failure of Any Party or Witness to Appear before the Lupon or Pangkat. – Refusal or willful failure of any party or witness to appear before the lupon or pangkat in compliance with a summons issued pursuant to the provisions on the Katarungang Pambarangay under Chapter 7, Title I of Book III of this Code may be punished by the city or municipal court as for indirect contempt of court upon application filed therewith by the lupon chairman, the pangkat chairman, or by any of the contending parties. Such refusal or willful failure to appear shall be reflected in the records of the lupon secretary or in the minutes of the pangkat secretary and shall bar the complainant who fails to appear, from seeking judicial recourse for the same cause of action, and the respondent who refuses to appear, from filing any counterclaim arising out of, or necessarily connected with the complaint.

A pangkat member who serves as such shall be entitled to an honorarium, the amount of which is to be determined by the sanggunian concerned, subject to the provisions in this Code cited above.